

## 23STCV13624 23STCV13624

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-30

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Case Number: 23STCV13624 Hearing Date: July 30, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Don Taylor

;

Plaintiff,

vs.

Rebuilding Resource LLC

, et al.,

Defendants.

Case No.:

23STCV13624

Hearing Date:

July 30, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION  
FOR LEAVE TO SUBMIT TARDY EXPERT WITNESS DESIGNATION

MOVING PARTY: Plaintiff Don Taylor

RESPONDING PARTY: Defendants Rebuilding Resource, LLC ,Esther  
Yaghjianian, and David Sinai

Motion for Leave  
to Submit Tardy Expert Witness Designation

The court considered the moving,  
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Plaintiff

Don Taylor ("Plaintiff") moves the court for an order granting leave to submit  
a tardy expert witness designation.

The

court finds that Plaintiff's tardy expert witness designation naming one  
retained expert and 24 non-retained experts would greatly prejudice defendants  
Rebuilding Resource, LLC ,Esther Yaghjianian, and David Sinai ("Defendants").

Code

of Civil Procedure section 2034.720 states in relevant part that the court  
"shall grant leave to submit tardy expert witness information only if all  
of the following conditions are satisfied: . . . [¶] (b) The court has  
determined that any party opposing the motion will not be prejudiced in  
maintaining that party's action or defense on the merits." (Code Civ. Proc., §  
2034.720, subd. (b) [emphasis added].)

Plaintiff's

proposed tardy expert witness designation is prejudicial on its face. Plaintiff seeks to designate 25 expert witnesses, only one of which is a retained expert, for a straightforward habitability and personal injury action. (Cutting Decl. Ex. 2 [Expert Witness Designation].) Trial in this action is set for September 9, 2026. (Stipulation and Order entered December 29, 2025.) The expert discovery deadline is 15 days before that date, which is August 25, 2026. (Stipulation ¶ 6; Code Civ. Proc. § 2034.010.) The court notes that Plaintiff promises to "make his experts available for deposition." (Motion p. 7:20). However, it is simply not feasible for any party to complete depositions of 25 expert witnesses in 26 days. Further, Plaintiff admits that 24 of the proposed expert witnesses are not retained. (Cutting Decl. Ex. 2.) Therefore, Plaintiff cannot meaningfully promise to make these witnesses available for depositions by the August 25, 2026 expert discovery cut-off date because Plaintiff has no control over them or their schedules.

For

the reasons stated above, the court finds that Defendants, who oppose this motion, will be prejudiced in maintaining their defense to the action on the merits by Plaintiff's tardy designation of 25 expert witnesses. The court therefore denies Plaintiff's motion for leave to submit a tardy expert witness designation.

ORDER

The court DENIES

plaintiff Don Taylor's motion for leave to submit tardy expert witness designation.

The court orders

defendants Rebuilding Resource, LLC, Esther Yaghjianian, and David Sinai to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 30, 2026

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Robert B. Broadbelt III

Judge of the Superior Court